

26STCP01931 26STCP01931

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C08%2F11%2F2026

Source SHA-256: 457b881b44c175d5e5ffb97dfadd38893dc9f302df0d3d0613cc5ba6ff44a83e

Case Number: 26STCP01931 Hearing Date: August 11, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

11, 2026

CASE NAME: Valentina

Mkrtchyan, et al. v. Mobilias Insurance Company

CASE NO.: 26STCP01931

PETITION

TO COMPEL ARBITRATION

MOVING PARTY: Petitioners

Valentina Mkrtchyan, Ani Misakyan, and Arevik Mkrtchyan

RESPONDING PARTY(S): Respondent Mobilias Insurance

Company

REQUESTED RELIEF:

1. An

order compelling Respondent to proceed to uninsured motorist arbitration as required by law and the insurance policy as well as an award of attorney's fees and costs.

TENTATIVE RULING:

1. Petition

to compel arbitration is DENIED without prejudice.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 21, 2026, Petitioners Valentina Mkrtchyan, Ani Misakyan, and Arevik Mkrtchyan (Petitioners) filed a petition for assignment of superior court file number in uninsured motorist matter concerning Respondent Mobilitas Insurance Company (Respondent).

On June 15, 2026, Petitioners filed the instant petition to compel arbitration.

On June 24, 2026, Respondent filed a stipulation to extend time to oppose the petition.

On July 1, 2026, Respondent filed an opposition pursuant to the stipulation. Replies were due on or before August 4, 2026. As of August 5, 2026, the court has not received a reply.

LEGAL STANDARD:

Recovery by an insured on an uninsured or underinsured motorist provision (UIM/UM) of an automobile insurance policy is governed by Insurance Code section 11580.2. If the insured and insurer cannot agree as to whether the insured is entitled to benefits under the UIM/UM provision or how much the insured is entitled to, the matter must be decided by arbitration conducted by a single neutral arbitrator. (Ins. Code, § 11580.2, subd. (f).) The discovery methods provided in Title 4 of the Code of Civil Procedure (the Civil Discovery Act) are available to either party, both before and after the commencement of arbitration, and the Superior Court has jurisdiction to adjudicate discovery disputes. (Ins. Code, §§ 11580.2, subds. (f) & (f)(2).)

“

No cause of action shall accrue to the insured under any

policy or endorsement provision issued pursuant to this section unless one of the following actions have been taken within two years from the date of the accident:

(A) Suit for bodily injury has been filed against the uninsured motorist, in a court of competent jurisdiction.

(B) Agreement as to the amount due under the policy has been concluded.

(C) The insured has formally instituted arbitration proceedings by notifying the insurer in writing sent by certified mail, return receipt requested. Notice shall be sent to the insurer or to the agent for process designated by the insurer filed with the department.”

(Ins. Code, § 11580.2, subd. (i).)

“

Any demand or petition for arbitration shall contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers' compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately.” (Ins. Code § 11580.2, subd. (f).)

“

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists . . .” (Code Civ. Proc. § 1281.2.)

“

[A]n insured's cause of action against an insurance company to compel arbitration or uninsured motorist benefits does not accrue, and the statute of limitations does not begin to run, until the insurance company

refuses to arbitrate.” (Allstate Ins. Co.

v. Gonzalez (1995) 38 Cal.App.4th 783, 789 [quoting Spear v. Cal. State Auto. Assn. (1992) 2 Cal.4th 1035, 1043].)

ANALYSIS:

Petitioners contend that they have a valid arbitration agreement in the uninsured motorist policy (the Agreement), demanded arbitration, Respondent imposed a condition to complete examinations under oath before proceeding to arbitration which is not part of the agreement, failed to set those examinations, and have failed to proceed with arbitration.

Respondent argues that this petition is premature since the conditions precedent to proceed with arbitration (claim investigation) have not been met, the issue of coverage is partially resolved, and it is unknown if the parties can agree on damages at this time. They add that the fees request is improper.

A petition to compel arbitration of an uninsured/underinsured motorist claim on an automobile insurance policy is a petition to compel arbitration made pursuant to Code of Civil Procedure (CCP) section 1281.2. (See Gordon v. G.R.O.U.P., Inc. (1996) 49 Cal.App.4th 998, 1005 [noting that arbitration of a claim on an uninsured motorist policy may be compelled to arbitration and citing Code of Civil Procedure section 1281.2].) As such, the court must make a finding that there is a written agreement to arbitrate and that a party to the agreement has refused to do so. (CCP § 1281.2.) Disputes on claims like Petitioners’ are required by law to be arbitrated, but the court must still make a finding that Respondent has refused to arbitrate the dispute in order to grant a petition to compel arbitration.

Here, Petitioners met their burden. First, they identify the applicable arbitration agreement within the uninsured motorists policy. (Declaration of Makenna Marks (Marks Decl.) ¶¶ 5, 6, Exhibit A [Policy, California Uninsured Motorists Coverage – Bodily Injury, p. 4, item 5].)

The Agreement states:

If we and an “insured” disagree whether the “insured” is legally entitled to recover damages from the owner or driver

of an “uninsured motor vehicle” or do not agree as to the amount of damages that are recoverable by that “insured”, the disagreement will be settled by arbitration.

(Ibid.)

The Agreement explicitly excludes disputes concerning coverage. (Ibid.)

Second, Petitioners indicate there is a dispute as to whether they are entitled to UM benefits and the amount thereof. (Marks Decl. ¶ 6.) Second, Petitioners formally demanded arbitration on August 13, 2025. (Id. at ¶ 7, Exhibit B.) Third, Respondent refused arbitration by classifying it as premature, conditioning commencement on completion of examinations under oath, and taking no steps to compete those examinations. (Id. at ¶¶ 8-10.)

Respondent, in turn, met their burden that there is not yet a disagreement on entitlement to UM benefits or the amount of damages. First, they provide evidence that coverage has only been determined for two of the Petitioners. (Declaration of Sara Young (Young Decl.) ¶¶ 13, 16-17.) There is no evidence of damages calculations let alone evidence of a dispute on damages. (See *Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190, 1201 [coverage questions must be resolved before the arbitrator reaches the two arbitrable questions pursuant to Ins. Code § 11580.2(f).]) What is more, Petitioner's evidence is one standalone sentence stating a conclusion rather than facts. Taken together, it appears there is not yet a dispute on entitlement to UM benefits or the amount of damages. This petition is therefore premature.

Accordingly, the court DENIES the petition to compel arbitration without prejudice.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Petition to compel arbitration is DENIED without prejudice.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 11, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court